

Chandrika v. State of U.P. & Others

Allahabad High Court · Division Bench · 8 January 2013 · WRIT - C No. 524 of 2013 · **Writ petition disposed of (relegated to the Clause 6.5 remedy, with interim protection on deposit)**

HEADNOTE

A consumer disputing the correctness of an electricity bill has an alternative statutory remedy of a complaint before the Competent Authority (here, the Executive Engineer) under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ court relegated the consumer to that remedy, directing the authority to decide by a speaking order after hearing, and granting interim protection against coercive recovery on the consumer depositing a part of the disputed amount, without adjudicating the claim on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing disputes — alternative remedy of complaint before the Competent Authority

HOLDING

A dispute as to the correctness of a bill is to be raised by complaint before the Competent Authority (the Executive Engineer) under Clause 6.5 of the Code; the writ petition is disposed of by relegating the consumer to that remedy, with a direction to decide by a speaking order after hearing and interim protection from coercive recovery conditioned on a part-deposit (Rs. 20,000). ¶ grounds and directions (unnumbered order)

LIMITING FACTS

The petitioner challenged an electricity bill dated 30.09.2012 showing arrears and surcharge; the respondent pointed to the Clause 6.5 remedy before the Executive Engineer.

PRINCIPLE TAGS

relegate-to-statutory-remedy A billing-correctness dispute is to be pursued through the Code's grievance channel (Clause 6.5) before the Competent Authority, not by writ, the writ court granting only interim protection on part-deposit.

¶ unnumbered order

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL ON MERITS

The Court expressly stated it had not adjudicated the petitioner's claim on merits. ¶ final paragraph